

Second hand items - refunds

Refund rights

When buying from a store or seller (including a business online), consumers have the same legal refund rights with second-hand items as they would with a new item.

However, they cannot claim a refund for problems that:

- the store or seller told them about
- they should have noticed when examining the item
- were indicated in photos or the item description on the website.

Case Study

Examples only (outcomes may differ in individual cases):

Kara buys a second-hand necklace from a vintage store on eBay. The photos clearly show the necklace has surface scratches. Kara cannot claim a refund, repair or replacement for the surface scratches. However, she can do so if another fault develops, such as the clasp breaking. The item's age, price and condition must also be taken into account.

Leticia buys a second-hand washing machine for \$250. The store said it was two years old and in good condition but it breaks down after two months. Considering the age, price and condition of the machine, it was reasonable for Leticia to expect it to work for more than two months. She may be entitled to a refund.

Last updated: 13 October 2023



We acknowledge the Traditional Owners of the lands, seas and skies. We pay our respects to their Elders past and present, and to future generations who will continue to care for Country.



(<https://www.consumer.vic.gov.au/resources-and-tools/yarrka-barring-resources-for-first-nations-people>)

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